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[doc. web n. 10107219]

Provision of February 13, 2025

Register of provisions

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****THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA****

In today's meeting, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, Members, and

Dr. Claudio Filippi, Deputy Secretary General;

****HAVING REGARD TO**** Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

****HAVING REGARD TO**** Legislative Decree of June 30, 2003, n. 196 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree of August 10, 2018, n. 101 containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

****HAVING EXAMINED**** the documentation on file;

****HAVING REGARD TO**** the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

****REPORTING**** Dr. Agostino Ghiglia;

****WHEREAS****

1. ****The investigative activity.****

The Office became aware from a report and some press articles that Dr. Claudio Battaglia, oncological surgeon, registered with the Order of Surgeons and Dentists of Imperia, had sent, on the occasion of the last municipal elections in the Municipality of Sanremo, to some of his patients suffering from a specific oncological disease (breast cancer) a letter in which, after recalling the diagnostic and therapeutic path undertaken by the recipient of the message, his competencies in the field and the professional roles held, he made the following request: "I therefore ask you, as when you trusted me for the illness, to have trust in this choice as well, which, I assure you, arises from motivations absolutely linked to the desire to be once again useful to Sanremo" (letter acquired in the records).

In relation to the above, the Office requested information by note dated May 23, 2024 (prot. n. 62874) to which Dr. Battaglia responded with a note dated June 5, 2024, stating, in particular, that:

"fewer than 100 letters were sent from my residential address";

"the source of the names is strictly personal and the precise addresses were collected through public lists, no legal basis for the processing of personal data required by the GDPR is deemed necessary in this context";

"Dr. Battaglia, to ensure the destination of his letters, had to request and obtain from the Municipality of Sanremo the public list of registered voters, both male and female."

In reference to this investigation, Dr. Battaglia submitted a request for access to administrative documents with a note dated July 14, 2024, which was accepted with a provision dated August 5, 2024.

2. ****The notification of violations and the defensive memoranda.****

In relation to what has emerged in the records, the Office, with a note dated July 15, 2024 (prot. n. 87182), issued a notification of violation pursuant to Article 166, paragraph 5, of the Code to Dr. Claudio Battaglia as it was found that the processing of personal data in question was carried out in a manner not compliant with the principles of "lawfulness, fairness, and transparency" and "purpose limitation" (Article 5, paragraph 1, letters a) and b) of the Regulation), as well as in the absence of an

appropriate legal basis (Article 9 of the Regulation).

With a note dated August 12, 2024, Dr. Claudio Battaglia submitted his defensive memoranda reiterating what had already been stated in the aforementioned note of June 5, 2024, and highlighting, in particular, that:

"It is certainly true that these are people I have treated over the years, this first contact represented the 'opportunity' for the establishment of a private relationship, for which, in absolute good faith and without any deceit, I did not believe that my conduct was subject to the regulations on the protection of personal data.";

"In fact, in light of the thousands of cases operated on and treated by me, I wished to contact only some Ladies with whom a closer and more personal relationship had been established; specifically approximately eighty, although the letters sent are about fifty";

"I was in possession of the names of the recipients of the letter as they were registered in my personal address book, thus not needing to search for them in any health database, to which I am obviously prohibited from accessing for these purposes";

"I then formally searched in the lists of eligible voters held by the municipalities (so-called electoral lists) for their addresses believing that I could present myself to them with the letter that is the subject of this dispute, also trusting in this case that I had not committed any illegality in terms of the protection of personal data";

"This particularly since I extracted the names from a public source — that is, accessible to anyone without restrictions — being lists held by a public entity and freely accessible, without discrimination, based on an express provision of law or of...

Regulation, which legitimizes the possibility of dispensing with a request for consent, as per the Provision of this Authority "Privacy and electoral propaganda. Electoral Decalogue - February 12, 2004 (G.U. No. 45 of February 24, 2004) web doc. No. 634369";

"Nevertheless, and to my naive surprise, as soon as I sent the first communications, I received objections from some journalists to whom a copy had been delivered. I immediately took steps to halt the sending of further letters and I considered it appropriate to officially present my apologies through the press to the recipients if I had offended their sensitivity or made them uncomfortable";

"Nonetheless, I believed that the privacy of the recipients had been adequately respected by me, through: the sending of a specifically personal letter inside a sealed envelope devoid of any logo and/or wording; the choice not to entrust the shipment to the postal service but to a private distributor specifically appointed, who obviously had not been made aware of the content of the letters, and to whom I specifically turned to ensure that the letters were not lost but were correctly delivered";

"I deeply apologize for my inexperience in observing privacy regulations in a sector that is not my own, but it was the first time I engaged in an electoral round and, as stated, it will undoubtedly be the last."

3. The outcome of the investigation.

Taking note of what is represented in the

documentation on file and in the defense memos, it is observed that:

pursuant to the Regulation, “personal data” is understood as “any information relating to an identified or identifiable natural person (‘data subject’); “data concerning health” are

those relating to the physical or mental health of a natural person, including the provision of healthcare services, which reveal information related to their state of health (art. 4, par. 1, points 1 and 15). Recital No. 35 of the Regulation further specifies that health data

“includes information about the natural person collected during their registration to receive healthcare services”; “a number, symbol, or specific element assigned to a natural person to identify them uniquely for health purposes”;

the Court of Cassation has deemed that “the very fact of communicating the need for healthcare treatment and, therefore, the existence of a ‘disease’ in a broad sense – understood as a situation that makes healthcare treatment necessary – pertains to health data:

it is not necessary, for this purpose, to specify which treatment or which disease is involved” (Sent. No. 28417/2023);

finally, with reference to the concept of health data, the CJEU has also considered that “the information entered by customers (such as their name, delivery address, and elements necessary for identifying the medicines) at the time of the online order of medicines reserved for pharmacies constitutes health data under the GDPR, even if the sale of these is not subject to a medical prescription.

Indeed, such data is capable of revealing, through an intellectual operation of comparison or deduction, information about the health status of an identified or identifiable natural person, because a link is established between that person and a medicine, its therapeutic indications, or its uses, regardless of whether such information concerns the customer or any other person for whom the customer places the order.

Therefore, it is indifferent that, in the absence of a medical prescription, it is only with a certain probability, and not with absolute certainty, that such medicines are intended for the customers who ordered them” (cf. press release of the Court of Justice of the European Union No. 159/24, in relation to the judgment of October 4, 2024, in case C-21/23);

personal data must be “processed lawfully, fairly, and transparently” and “collected for specified, explicit, and legitimate purposes, and subsequently processed in a manner that is not incompatible with those purposes” (principles of “lawfulness, fairness, and transparency” and “purpose limitation”, art. 5, par. 1, lett. a) and b) of the Regulation);

the processing in question concerns health data, as – by the express admission of Dr. Battaglia – the recipients are oncology patients and the content of the electoral message expressly refers to the illness suffered by them;

with reference to health data, such as those in question, art. 9, par. 1, of the Regulation generally prohibits their processing, unless one of the cases provided for in par. 2 of the same article occurs; on this point, as already highlighted in the request for information cited, it is noted that the Guarantor has long outlined a precise framework of guarantees and obligations that parties, political bodies, supporters of lists, and candidates must observe to correctly collect and use the personal data of citizens they intend to contact for communication and electoral propaganda purposes (cf. latest provision of April 18, 2019, web doc. No. 9105201). In this provision, it was particularly noted that personal data collected in the context of health protection activities by healthcare professionals and

health bodies cannot be used for electoral propaganda and related political communication purposes. Such a purpose is not, in fact, attributable to the legitimate aims for which the data were collected (art. 5, par. 1, letters a) and b) of the Regulation); Regulation), unless the data controller obtains specific and informed consent from the data subject (art. 9, par. 1, lett. a); see regarding the health sector the provision of March 7, 2019, web doc. no. 9091942, in particular, par. 1, point d);

Dr. Battaglia, as represented above, has deemed that the legal basis for the processing of the data in question is found in the circumstance that the residential addresses of the recipients of the electoral letter were extracted from “a public source,” namely from “the public list of registered voters.” On this point, the following is highlighted:

As mentioned above, art. 9, par. 1 of the Regulation prohibits the processing of data belonging to special categories, including health data. Such information may only be processed in the presence of one of the conditions indicated in the subsequent par. 2, among which the case of acquiring data from “public lists” is not included;

Dr. Battaglia, for the purpose of sending the aforementioned electoral letters, did not only use the data related to residence acquired from the electoral lists, but also health data of about 50 of his oncology patients. Dr. Battaglia indeed acknowledged that he selected from the patients he had “treated over the years” a group of 50 women for whom he then acquired their respective residence data from the electoral lists;

The content of the electoral message explicitly refers to the illness suffered by the recipients of the message, leveraging the trust relationship established during the care process and the gratitude of the recipients for the care received in order to also solicit their electoral support;

The circumstance that “in light of thousands of cases operated on and treated by me, I wished to contact only a few Ladies with whom a closer and more personal relationship had been established” does not justify the processing of health data of such patients without their knowledge for electoral purposes. The “closer and more personal” relationship that can sometimes reasonably develop between doctor and patient should have led Dr. Battaglia to discuss his candidacy only within the normal occasions of contact with them;

The Regulation, in regulating the parameters of lawfulness of the processing carried out by the healthcare professional, refers to professional secrecy and compliance with the sector rules established by the competent health authorities, among which the Medical Code of Ethics can be included (art. 9, par. 2, lett. h) and par. 3 of the regulation and art. 75 of the Code). The aforementioned Medical Code of Ethics provides that “Under no circumstances may the doctor abuse their professional status” and that “the doctor must avoid any condition of conflict of interest in which professional behavior is subordinated to undue economic or other advantages” (arts. 7 and 30 of the Medical Code of Ethics of 2014, last updated in 2017). In this regard, the possibility of electoral advantage for Dr. Battaglia in addressing his patients based on the trust relationship established during the care process is highlighted.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to art. 58, par. 2, Regulation.

In light of the overall findings, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are therefore unsuitable to order the archiving of the present procedure, as none of the cases provided for by art. 11 of the Garante Regulation no. 1/2019 apply.

The processing of personal data carried out by Dr. Claudio Battaglia is indeed unlawful, as stated above, since it was carried out in violation of the principles of “lawfulness, fairness, and transparency” and “purpose limitation” (art. 5, par. 1, lett. a) and b) of the Regulation) and in the absence of an appropriate legal basis (art. 9 of the Regulation).

It is finally believed that the conditions of art. 17 of the Garante Regulation no. 1/2019 apply.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code).

The violation of arts. 5, par. 1, lett. a) and b) and 9 of the Regulation entails the application of the administrative sanction provided for by art. 83, par. 5 of the Regulation.

The Garante, pursuant to art. 58, par. 2, lett. i) of the Regulation and art. 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by art. 83 of the Regulation, through the adoption of an injunction order (art. 18. L. November 24, 1981 no. 689), in relation to the processing of personal data carried out by Dr. Claudio Battaglia, the unlawfulness of which has been established, as stated above.

It is deemed necessary to apply par. 3 of art. 83 of the Regulation where it provides that “if, in relation to the same processing or to related processing, a data controller [...] violates, with intent or negligence, various provisions of this Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation,” the total amount of the sanctions are calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

In light of the above and, in particular, of the category of personal data affected by the violation, which, by their nature, are particularly sensitive in terms of fundamental rights and freedoms, and the number of individuals involved (50 patients) whose data were processed without obtaining their consent for electoral purposes by the doctor to whom they had entrusted themselves for care purposes, it is believed that the level of severity of the violation committed by Dr. Battaglia is high (cf. European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the application of the administrative monetary penalty and its quantification, considering that the penalty must be “effective, proportionate and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account:

1. Dr. Claudio Battaglia processed the personal data of numerous patients (about 50) - acquired within the fiduciary relationship aimed at providing oncological care - for personal gain related to his candidacy in the 2024 municipal elections in Sanremo (Article 83, paragraph 2, letter k) of the Regulation);
2. The Authority became aware of the violation through a report and some press articles (Article 83, paragraph 2, letter h) of the Regulation);
3. Dr. Claudio Battaglia is not the subject of previous prescriptive or sanctioning measures by the Authority and has cooperated during the investigative activity in which he was involved (Article 83, paragraph 2, letters e) and f) of the Regulation).

It is also believed that the following circumstance is relevant in this case, due to the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the penalty (Article 83, paragraph 1, of the Regulation): Dr. Claudio Battaglia practices as an oncologist in the Municipality of Sanremo where the aforementioned electoral consultations took place.

In light of the above elements and evaluations, it is deemed appropriate, in this specific case, to apply to Dr. Claudio Battaglia the administrative penalty of paying an amount of €10,000.00 (ten thousand/00).

In this context, it is also considered that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation no. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed.

This is in consideration of the seriousness of the contested conduct which involves the regulation on the protection of personal data and the ethical obligations that constitute the legality parameter of processing pursuant to Article 9, paragraph 2, letter h) and paragraph 3 of the Regulation and Article 75 of the Code. For the same reasons, it is deemed appropriate to transmit this provision to the Order of Surgeons and Dentists of Imperia to which Dr. Claudio Battaglia is registered.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

a) pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, finds the unlawfulness of the processing carried out by Dr. Claudio Battaglia, tax code XX, registered with the Order of Surgeons and Dentists of Imperia, residing in XX, XX as stated in the reasoning, for the violation of Article 5, paragraph 1, letters a) and b) and Article 9 of the Regulation;

ORDERS

b) pursuant to Article 58, paragraph 2, letter i) of the Regulation, Dr. Claudio Battaglia to pay the sum of €10,000.00 (ten thousand/00) as an administrative monetary penalty for the violations indicated in this provision.

ENJOINS

c) therefore Dr. Claudio Battaglia to pay the aforementioned sum of €10,000.00 (ten thousand/00), according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law no. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the right to resolve the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed penalty within the term provided for the submission of the appeal as indicated below in Article 10, paragraph 3, of Legislative Decree no. 150 of September 1, 2011.

DISPOSES

d) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation no. 1/2019, the publication of the injunction order on the Authority's website;

e) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Authority's Regulation no. 1/2019, the publication of this provision on the website of the Authority;

f) pursuant to Article 17 of the Authority's Regulation no. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation;

g) the sending of this provision to the Order of Surgeons and Dentists of Imperia for the relevant assessments.

Pursuant to Article 78 of the Regulation, as well as of the...
Articles 152 of the Code and 10 of Legislative Decree No. 150/2011,
against this provision, an appeal may be made
to the ordinary judicial authority, with
a petition filed with the ordinary court of the place
identified in the same Article 10, within the term of
thirty days from the date of communication of
the provision itself, or sixty days if the
appellant resides abroad.

Rome, February 13, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

